

Mohit Goyal vs State Of Uttarakhand on 15 February, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

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IN THE HIGH COURT OF UTTARAKHAND AT
NAINITAL

Criminal Writ Petition No. 149 of 2013
with
Urgency Application No. 860 of 2013
Interim Relief Application No. 812 of 2013

1. Mohit Goyal
S/o Satish Prakash Goyal
2. Satish Kumar Goyal
S/o Late Ram Kishan Goyal
3. Smt. Anshu Goyal
W/o Shri Satish Prakash Goyal
All R/o Durgamal, Chowk Bazar
Doiwala District Dehradun
4. Anjali
W/o Manoj Kumar
5. Manoj Kumar
S/o Shri Brij Bhushan
Both R/o New Mandi, Bhopa Road
Muzaffarnagar, U.P.

..... Petitioners

Versus

1. State of Uttarakhand, through
Principal Secretary Home, Secretariat
Dehradun
2. S.H.O.
Police Station Jwalapur
District Hardwar Uttarkhand
3. Smt. Priyanka
W/o Shri Mohit Goyal
D/o Shri Umesh Chandre Goyal
R/o Maya Kunj, House No.18,
Gali No.2, Khanna Nagar, P.S. Jwalapur
District Hardwar

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.....Respondents.

Shri Siddhartha Singh, Advocate, present for the petitioners.
Shri Hari Om Bhakuni, Brief Holder, present for the State.

Hon'ble Prafulla C. Pant, J.

Urgency Application No. 860 of 2013 is allowed.

(2) Heard.

(3) By means of this writ petition moved under Article 226 of Constitution of India, the petitioners have sought quashing of the First Information Report No. 37 of 2013 (Crime No. 51 of 2013) relating to offences punishable under section 498A of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, at Police Station Jwalapur, District Hardwar.

(4) Learned counsel for the petitioners submitted that petitioner no.1 is husband, petitioner no.2 is father in law, petitioner no. 3 is mother in law, petitioner no.4 is married sister in law (NANAD) and petitioner no.5 is brother in law (NANDOI) of the respondent no.3 Priyanka. It is contended that after the petitioner no.1 filed divorce petition against the respondent no.3 as a counter blast the respondent no.3 filed not only a petition under section 9 of Hindu Marriage Act, and application under section 125 of Cr.P.C, but also got lodged the impugned First Information Report. It is argued that it is abuse of process of law on the part of the respondent no.3 to implicate the entire family members of her husband due to their matrimonial discord.

(5) Admit the petition.

(6) Learned counsel for the State prays for and is allowed six weeks' time to file the counter affidavit.

(7) Issue notice to respondent no.3 Priyanka, who may also file her counter affidavit within a period of six weeks.

(8) Having considered submissions of learned counsel for the petitioners, and learned counsel for the State, and after going through the papers on record, as an interim measure, it is directed that the petitioner no. 2 Satish Prakash, petitioner no.3 Smt. Anshu Goyal, petitioner no.4 Anjali and petitioner no.5 Manoj Kumar shall not be arrested in connection with F.I.R. 37 of 2013 (Crime No. 51 of 2013) relating to offences punishable under section 498A of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, registered at Police Station Jwalapur, District Hardwar, during investigation, provided they cooperate with the investigating agency. As to the petitioner no.1 Mohit Goyal it is observed that if he surrenders before the court concerned his bail application shall be heard and disposed of without unreasonable delay, keeping in mind that he has pleaded that the First Information Report has been lodged as the counter blast to the divorce petition filed by him. (Interim Relief Application No. 812 of 2013 stands disposed of).

(9) List after six weeks.

(Prafulla C. Pant, J.) Vacation Judge Dt.15.02.2013 NP